

**2. Chattel interest in real estate results to heir's personal representatives.**—Should the interest resulting, as a remnant of the real estate, to the heir be of a chattel nature, as a term of years, or a sum of money, it will on the death of the heir, devolve on *his* personal representative (*a*).

[\*144] **\* 3. Of trusts resulting by presumption.**—The settlor's intention of excluding the person invested with the legal estate from the usufructuary enjoyment, may either be *presumed* by the Court, or be actually *expressed* upon the instrument.

**4. Whether trust will result where no trust declared of any part.**—If an estate be granted either without consideration

(*a*) *Levet v. Needham*, 2 Vern. 138; *rett v. Buck*, 12 Jur. 771. See *Halwych v. Packington*, 3 B. P. C. 44; *ford v. Stains*, 16 Sim. 448. *Sewell v. Denny*, 10 Beav. 315; Bar-

and uncertain, or is illegal, or which fails, or where the trust is in a part only, or the conveyance is made without any consideration. The intention that a trust is to result must appear expressly or by implication from the instrument itself. In case of a will no parol is admissible to show the intention, and the same is true of a deed except in case of fraud, accident, or mistake; 2 Pom. Eq. Jur. § 1036; *Squires v. Harder*, 1 Paige, 494; 19 Am. Dec. 446; *Russ v. Mebius*, 16 Cal. 350; *Leman v. Whitley*, 4 Russ. 423.

Resulting trusts are executed by the transfer of the title by the trustee to the *cestui que trust* at the latter's request; *Millard v. Hathaway*, 27 Cal. 119; for cases where the trustee has incurred expense or made improvements, see *Maloy v. Sloans*, 44 Vt. 311; *Rines v. Bachelder*, 62 Me. 95; *Bodwell v. Nutter*, 63 N. H. 446.

For cases of resulting trusts in the provinces, see *Timmius v. Surples*, 26 C. P. 49; *Grace v. MacDermott*, 13 Chy. 247; *Secord v. Costello*, 17 Chy. 328; *McDonald v. McMillan*, 14 Chy. 99; *Hoig v. Gordon*, 17 Chy. 599; *Owen v. Kennedy*, 20 Chy. 163; *Wilde v. Wilde*, 20 Chy. 521; *Street v. Hallett*, 21 Chy. 255; *Knox v. Traver*, 24 Chy. 477; *Wilson v. Owens*, 26 Chy. 27.

In the province of Ontario, a deed being executed through misunderstanding of the grantor as to its effect, a resulting trust arose; *Grace v. McDermott*, 13 Chy. 247; administratrix deposited children's shares of property with her brother, he becoming a trustee for them; *Secord v. Costello*, 17 Chy. 328; nephew taking title at sale, without paying price, was declared a trustee; *McDonald v. McMillan*, 14 Chy. 99; woman living with a married man paid for land conveyed to him, and a trust resulted to her; *Hoig v. Gordon*, 17 Chy. 599; but see *Street v. Hallett*, 21 Chy. 255; land conveyed to wife, paid for by joint efforts of the whole family, raised a resulting trust in the husband; *Owen v. Kennedy*, 20 Chy. 163; when there is a failure to support a trust by parol, a resulting trust cannot be maintained; *Wilde v. Wilde*, 20 Chy. 521; if money is advanced by the father and title taken to the son, there is a presumption of an advancement and no trust results; *Knox v. Traver*, 24 Chy. 477; where no consideration passes, a trust arises by operation of law; *Wilson v. Owens*, 26 Chy. 27.